

Argument for the attorney.

IV. "Due process of law," in the case of attorneys-at-law, is held to require, whatever may be the form of process or mode of procedure, and for whatever cause (invariably limited to causes involving moral or professional delinquency), that there shall be a sufficient charge or allegation in writing, duly filed of record in court, specifying the particular offence or matter complained of (usually supported by the oath of the party preferring the accusation); and, unless waived of record, written notice served on the attorney to show cause why he should not be removed from his office, or his name stricken from the roll of attorneys, for the offence or matter complained of; and which notice should specify the time when, the place where, and the tribunal before which he is to appear and answer. The attorney is entitled to a *day in court*, on which to make defence, and the trial is to be conducted like all other trials in summary proceedings at the common law, and the attorney convicted only if the proofs shall establish or conform to the allegations.*

In numerous cases,† the judgments or orders removing the attorneys from their offices, having been made without

of Sierra Leone, 3 Id. 361; *Gahan v. Lafitte*, Id. 382; *Willis v. Sir G. Gipps*, 5 Id. 379; *Wildes v. Russell*, C. B. 722, Eng. Law Rep. 1866; *Capel v. Child*, 2 Crompton & Jervis, 558; *Rex v. Gaskin*, 8 Term, 209; *Howard v. Gosset*, 10 Q. B. 381; *Bonaker v. Evans*, 16 Id. 162; *Ex parte Ramshay*, 18 Id. 187; *Ex parte Kinning*, 4 C. B. 507; *Dynes v. Hoover*, 20 Howard, 82; *Gorham v. Luckett*, 6 B. Munroe, 146; *Murray v. Oliver*, 3 Id. 1; *Greene v. Briggs*, 1 Curtis, 325; *Sevier's Case*, Peck, 334; *Sheldon v. Newton*, 3 Ohio State, 498; *McClure v. Tennessee*, 1 Yerger, 223; *United States v. Duane*, Wallace's Circuit Court, 5; *Ex parte Heyfron*, 7 Howard, Mississippi, 127; *Fletcher v. Daingerfield*, 20 California, 427; *People v. Turner*, 1 Id. 150; *Fisher's Case*, 6 Leigh, 619; *James Prescott's Trial*, 1821, page 164, and Appendix, pages 212 to 219.

* *Ex parte Burr*, 9 Wheaton, 529; *The People v. Turner*, 1 California, 150; *Iowa v. Start*, 7 Iowa, 499.

† *Ex parte Heyfron*, 7 Howard's Miss. 127; *Fletcher v. Daingerfield*, 20 California, 430; *People v. Turner*, 1 Id. 143, S. C. 190; *In re Monckton*, 1 Moore's Privy Council, 455; *Smith v. Justices of Sierra Leone*, 3 Id. 361; *In re Downie*, 3 Id. 414; *In re Arrindell*, 3 Id. 414; *Smith v. Justices of Sierra Leone*, 7 Id. 174; *Emerson v. The Justices of the Supreme Court of Newfoundland*, 8 Id. 157.